
IN THE HIGH COURT OF JUDICATURE AT BOMBAY
CIVIL APPELLATE JURISDICTION
WRIT PETITION NO. 7553 OF 2026

Meenakshisundaram Sankarnarayanan

.. Petitioner

Versus

Deputy Commissioner of Income Tax
Circle-1 & Ors

.. Respondents

Mr. Nageshwar Rao (through VC), with Radha Halbe,
Advocates for the Petitioner.

Mr. Akhileshwar Sharma, *Advocates for the Respondents /*
Revenue.

ANJALI
TUSHAR
ASWALE

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CORAM: B. P. COLABAWALLA &
FARHAN P. DUBASH, JJ.
DATE: SEPTEMBER 16, 2026

P. C.

1. It is common ground before us that the facts in the present case are identical to the facts in Writ Petition No.6662 of 2026. For the reasons stated in our order passed today in Writ Petition No.6662 of 2026, we hereby quash and set aside the impugned order dated 7th October 2025 passed by the learned CIT(A) insofar as it gives a direction to the Assessing Officer not to give credit of the TDS deducted merely because it is not reflected in the Petitioner's Form 26AS. We also set aside the order dated 17th February 2026

passed by Respondent No.1 to the extent of giving effect to the order dated 7th October 2025.

2. We now direct the Assessing Officer, namely, the 1st Respondent to re-examine the documents submitted by the Petitioner to substantiate his claim that TDS has been deducted from the salary paid to him by Respondent No.3. If the Assessing Officer is satisfied with the explanations given by the Petitioner that TDS has been deducted from his salary, then naturally credit for the same will have to be given to the Petitioner as per the directions of this Court in *Manohar Jhunjhunwala (supra)*.

3. We direct that this entire exercise shall be done by the Assessing Officer within a period of six weeks from the date of this order being brought to the notice of the Assessing Officer (1st Respondent).

4. The Writ Petition is disposed of in the aforesaid terms. However, there shall be no order as to costs.

5. Though we have disposed of the above Writ Petition, we place it on Board for reporting compliance on 4th November 2026.

6. This order will be digitally signed by the Private Secretary/
Personal Assistant of this Court. All concerned will act on production by fax
or email of a digitally signed copy of this order.

[FARHAN P. DUBASH, J.]

[B. P. COLABAWALLA, J.]